

TENTATIVE RULING FOR CIVSB2314806
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Schendel v. Vasquez, et al

Motion: Continue trial

Movant: Christina Vasquez (Vasquez/Defendant)

Respondent: Jerrad Schendel (Plaintiff/Schendel)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On July 3, 2023, Plaintiff filed the complaint alleging causes of action for: (1) motor vehicle; and (2) negligence. Plaintiff's claims arise out of a July 9, 2021 car accident. On August 23, 2023, Defendant answered.

On November 11, 2025, Defendant filed her first motion to continue the trial, then set for January 20, 2026. The Defendant also filed an ex parte application to shorten time for the hearing. The Court granted an order shortening time and set the matter for December 12, 2025. Plaintiff filed an opposition to the motion. On the December 12, 2025 hearing, since the court was engaged in trial for January, counsel stipulated to convert the January 15, 2026 hearing to a trial setting conference. On January 15, 2026, counsel submitted a stipulation for trial to commence August 24, 2026.

On January 28, 2026, an amended stipulation and order was entered that provides the trial readiness conference was continued to August 13, 2026, and the trial was continued to August 24, 2026. Counsel also agreed that Defendant's deposition will be completed by the end of March 2026; any IMEs of Plaintiff will be completed by the end of May 2026; expert inspections will be completed by the end of April 2026; mediation will be completed by June 2026; and if the case is not yet resolved, expert discovery would commence and the parties would prepare for trial. The parties stipulated that all discovery deadlines would be continued and recalculated from the new trial date. Given the trial date is August 24, 2026, the discovery cutoff date is July 27, 2026 (thirty days before trial is Saturday, July 25, 2026). (Code Civ. Proc., § 2024.020, subd. (a).) Now before the Court is Defendant's motion to continue the trial. Plaintiff opposes.

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ANALYSIS

Under California Rules of Court, rule 3.1332, a continuance for trial shall not be granted except on an affirmative showing of good cause. Rule 3.1332(c) and (d) provide in relevant part:

(c) Grounds for continuance. Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts....

(d) Other factors to be considered. In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

Reassignment of Handling Defense Counsel

The reassignment of defense counsel in the same firm four months before the trial is not good cause for a continuance. A review of the register of actions shows that Defendant has filed Notice of New handling Attorney three times since this case commenced. The last such notice was filed April 28, 2026. The declaration filed by Attorney Huang with the instant motion is silent as to when he became the handling attorney or whether he ever worked on this case prior. There is also no explanation as to why the prior handling attorney Lominghit was not available to be reassigned to this case. There has certainly been enough time for attorney Huang or any other attorney in the firm to prepare for trial with the current case file.

Incomplete Written Discovery

The alleged lack of incomplete discovery this late in the case is not good cause to continue discovery when considering the history of the case and especially the stipulations of counsel. Furthermore, based on the opposition and reply, what is really incomplete is the expert discovery and another IME on Plaintiff.

Defendant's IMEs of Plaintiff

Defendant has not been diligent in their efforts to obtain the second IME of the Plaintiff. It appears that they have not yet asked Plaintiff for a stipulation nor have they filed a motion to compel. The stipulated deadline for conducting IMEs was the end of May 2026, and Defendant has not filed a motion to compel the examination. Defendant's intention of conducting a second IME, without more effort by her to obtain one before the deadline elapsed, does not support finding good cause for a continuance.

Expert Depositions

Plaintiff noticed expert depositions for July 29, 2026; August 7, 2026; and August 10, 2026. Expert discovery cutoff is controlled by Code of Civil Procedure section 2024.030, which provides a cutoff date fifteen days before trial. Given that the trial date is August 24, 2026, fifteen days before trial would be Sunday, August 9, 2026, which makes the cutoff date Monday, August 10, 2026. (Code Civ. Proc. §§ 2016.060; 2024.030.) The expert depositions will be complete within the expert discovery cutoff deadline, so good cause to continue the trial to allow the parties time to conduct expert depositions is not demonstrated.

Judicial Economy

The Complaint was filed three years ago for an injury occurring five years ago. The Court set the original trial date of January 20, 2026, back on January 23, 2023. The Court sets these dates so that counsel can have adequate time to prepare for settlement of the action or trial if necessary. Judicial economy is best served by cases settling or being ready for trial on their actual trial date. Judicial economy is not served by continuances that only further congest an already burdened calendar. Judicial economy does not support good cause for a continuance.

Lead Trial Counsel's Unavailability

Counsel asserts that lead trial counsel has a conflict, but they do not argue that the handling attorney for the case has a conflict. Moving party fails to specify what work lead trial counsel has done in this case or why that attorney is needed for this trial when the handling attorney is available. The parties have known since January 28, 2026 of the August 24, 2026 trial date, and lead counsel did not submit a declaration explaining the conflict. The alleged unavailability of "lead" counsel is not good cause for a continuance.

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Previous Continuance

There have been multiple continuances of this matter already. On November 19, 2025, Defendant filed its first motion to continue trial. The grounds for continuance in that motion are identical to the instant motion with the exception that as of that time, there had not yet been a continuance of trial requested by defendant and “lead” counsel did not have an alleged conflict. The parties ultimately continued the January 2026 trial by stipulation that contained very specific discovery deadlines that this court is not going to disturb based on the evidence presented with the instant motion.

RULING

1. Defendant’s motion to continue trial is DENIED.
2. Movant to give Notice.